

addressee became liable for damages 30 days after receiving the letter. The intervention was therefore rejected as inadmissible.

According to T 392/97, Art. 105 EPC 1973 required that an intervener should prove both that the patentee had requested that he cease alleged infringement of the patent and that he had instituted proceedings for a court ruling that he was not infringing the patent. Thus where the letter was sent not to the allegedly infringing company, but to an unrelated one which it was assumed was about to acquire it, the first requirement was not fulfilled and their interventions were inadmissible. The first requirement was also not fulfilled in T 446/95, where the letter merely set out a position adopted in response to a letter from the purported intervener, and did not give notice to cease infringement. According to T 887/04 of 14 November 2006, it was for the assumed infringer to prove, first, that he had received a "request" to cease the infringement, i.e. that he had been expressly asked to do so, and, second, that he had been required to "cease", i.e. put an end to, the infringement. Proof of mere warnings or threats of legal action had therefore to be considered insufficient.

In T 898/07 the board found the intervention admissible. It was apparent from the documents submitted by the opponent that the respondent had repeatedly informed it that it considered its actions to infringe the patent and, with reference to infringement proceedings already pending against third parties, invited it to enter licensing negotiations. The board considered this a request to cease patent infringement by concluding a licensing agreement which would render the allegedly unlawful conduct (patent infringement) lawful (licensed use). This met the first requirement under Art. 105(1)(b) EPC, the wording of which covered not only to a request to refrain from using the invention altogether, but also generally to a request to cease the alleged patent infringement. In addition, the opponent had instituted proceedings against the respondent for a declaration of non-infringement of the patent.

In T 1138/11 the board held that compliance with the requirement that the intervener has been requested to cease the alleged patent infringement was not to be determined in accordance with the relevant national law. Since the laws in the contracting states varied to quite an extent from one to another, this requirement had to be applied in a harmonised manner for all contracting states. This could only be achieved by way of an autonomous interpretation of the EPC provisions and their legal terms. The board also found that, since an intervention by a third party was treated as an opposition and so – as an exception to the 9-month time limit for filing a notice of opposition – this party was granted the status of an opponent, Art. 105 EPC had to be interpreted in a restrictive manner.

In T 304/17 the appellant argued that for the three-month time limit to be triggered, it was necessary but also sufficient for the two criteria mentioned in Art. 105(1)(b) EPC to be fulfilled, regardless of the order in which this happened. The board disagreed with this understanding of Art. 105(1)(b) EPC. It followed from its clear wording that it required a specific sequence of events ("following a request of the proprietor of the patent ..., the third party has instituted proceedings ..."). The travaux préparatoires confirmed that the legislator had intentionally chosen this sequence of events. This conclusion was also in line with a systematic interpretation, because in both alternative scenarios – Art. 105(1)(a)

and (b) EPC – it was the formal institution of proceedings (before a court or another competent national authority) which triggered the time limit. These were events which could be unambiguously established with legal certainty, since they had official dates (see T 296/93) and thus set "a clear demarcation line" (see also T 18/98).

1.4. Proceedings pending before the EPO

1.4.1 Intervention in opposition proceedings

In G 4/91 (OJ 1993, 707) the Enlarged Board held that the intervention under Art. 105 EPC 1973 of an assumed infringer in the opposition proceedings presupposed that opposition proceedings were pending at the time he gave notice of intervention. Moreover, a decision of the opposition division on the relief sought had to be regarded as conclusive in the sense that the opposition division no longer had the power thereafter to amend its decision. The Enlarged Board further held that proceedings before an opposition division were terminated when such a conclusive decision was issued, irrespective of when this decision became final. Thus, if, after an opposition division had issued a decision terminating the proceedings, and none of the parties to the opposition proceedings filed an appeal, any notice of intervention filed during the two-month period for appeal under Art. 108 EPC 1973 was invalidated.

In T 791/06, where an intervention was filed after the oral proceedings before the opposition division when the decision was pronounced but before notification of the written decision, the board held that it had not been filed during pending opposition proceedings but considered the intervention to have been filed during the appeal proceedings.

In T 631/94 (OJ 1996, 67) the board noted that when a decision to terminate opposition proceedings, taken in written proceedings, was handed over to the EPO postal service, it became public and effective and had therefore been issued. If the parties to the proceedings leading to that decision did not appeal, the opposition proceedings were completed at that point in time and thereafter intervention based on Art. 105 EPC 1973 was no longer possible.

1.4.2 Intervention in appeal proceedings

In G 1/94 (OJ 1994, 787) the Enlarged Board concluded that Art. 105 EPC 1973 should apply to appeal proceedings. The term "opposition proceedings" was not restricted to the department of first instance, but could also refer to such proceedings at second instance. Intervention during appeal proceedings was therefore admissible (see also T 694/01). A notice of intervention filed during the two-month period for appeal has no legal effect if no appeal is filed (G 4/91, OJ 1993, 707).

In T 694/01 the board found that intervention depended on how far the opposition or appeal was still pending. An intervener could not challenge issues on which a final decision had already been taken (in earlier appeal proceedings).

1.5. Time limit for intervention

Under R. 89 EPC, intervention is not possible until the opposition period has expired (this was previously laid down in Art. 105 EPC 1973), but notice of it must be filed within three months of the date on which proceedings referred to in Art. 105 EPC were instituted.

If multiple proceedings are under way, the three-month time limit for intervening is always triggered by the date on which the **first** proceedings were instituted (T 296/93, T 1143/00).

The two alternative starting points under Art. 105(1) EPC 1973 for calculating the three-month period for intervention were mutually exclusive (T 296/93, OJ 1995, 627). See also T 144/95 and T 18/98. Art. 105 EPC 1973 could not be used to give an opponent who failed to file an appeal in time a second chance, as the opponent does not fulfil the requirement of being a third party (T 1038/00).

In T 694/01 the board held that Art. 105(1) EPC 1973 did not stipulate when infringement proceedings were deemed to have been instituted. As they could only be instituted before the national courts, the wording of Art. 105 EPC, even if not explicitly, set this date by reference to the relevant national procedural laws.

In T 452/05 the board considered three dates which could possibly have triggered the three month period: the date on which the request for an interim injunction was made, the date on which the request was granted, or the date when the injunction order was served upon the opponent. In the board's view, only the last date should be regarded as the decisive point in time, as only from that date onwards could the opponent provide evidence of the proceedings that entitled it to intervene.

In T 691/16 the appellant (patent proprietor) disputed that the three-month time limit prescribed by Art. 105 EPC and R. 89 EPC had been adhered to since the date on the advice of delivery recording service of the notice of action was not clearly legible and, moreover, the signature on it was allegedly not identical to the intervener's. The board ruled that the intervention had been filed properly and in due time. Proving service was the very point of the advice of delivery, and both the stamped date and the handwritten date (in so far as it was legible) showed the relevant date. So there was at least prima facie evidence against which the patent proprietor had not asserted any substantiated doubts. Moreover, R. 126(2), last half of the sentence, EPC reflected a general principle whereby, in case of doubt, it was for the sender of a document, not the recipient, to prove that it had reached the recipient and when. Doubts owing to things such as illegibility therefore could not act to the recipient's detriment. As regards the differences in the signature, the board pointed out that a notice of action did not necessarily have to be served on the recipient itself, but could also be served on people living in the building or with the necessary authorisation. This was generally what happened at companies. There was therefore no reasonable doubt that the intervener's claim to have received the notice of action on the relevant date was true.

1.6. Fees

Under Art. 105(2) EPC in conjunction with Art. 2(1) No. 10 RFees, interveners must pay the opposition fee (see R. 89(2), second sentence, EPC; T 27/92 of 25 July 1994).

Where a party intervenes only at the appeal stage, several decisions have stated that no appeal fee need be paid if the party is not seeking appellant status in his own right (see T 27/92, T 684/92, T 467/93, T 471/93, T 590/94, T 144/95, T 886/96 and T 989/96). In T 1011/92 and T 517/97 (OJ 2000, 515) the board ruled that an intervener must pay the fee if he wants to have his own right to appeal proceedings, in the sense that he can continue them if the original appellant withdraws his appeal. However, in T 144/95, where an intervention was filed during appeal proceedings and an appeal fee paid, the board ordered the appeal fee to be refunded (at the request of the intervener) – under Art. 107 EPC 1973, an admissible appeal could only be filed by a party who was already a party to the proceedings leading to the decision and who was adversely affected by it. Where the intervention was filed during appeal proceedings, the intervener could not satisfy these conditions, and, referring to G 1/94, OJ 1994, 787, could not be considered as an appellant. Whilst Art. 105 EPC 1973 provided an exception to the time limit for payment of the opposition fee under Art. 99 EPC 1973, no such exception was made concerning the appeal fee.

In G 3/04 (OJ 2006, 118) the Enlarged Board held that there was no legal basis for demanding the payment of the appeal fee by an intervener in appeal proceedings. Fees paid by way of precaution but without a legal basis were reimbursed.

1.7. Substantiation requirement

Under R. 89 in conjunction with R. 76 EPC, the notice of intervention must give the grounds for the intervention, and the facts and evidence submitted to substantiate them.

In T 1659/07 the board found that the substantiation requirement under R. 89(2) EPC in conjunction with R. 76(2)(c) EPC was met by a reference to an existing statement of grounds for appeal or notice of opposition. The purpose of the requirement was to ensure that the intervener's arguments could be objectively understood, i.e. that the intervener's position was set out clearly enough that both the patentee and the opposition division or board of appeal could identify the reasons for the intervention. Reference to the arguments of another opponent already on file was sufficient to that end. Accordingly, an intervener need not repeat those arguments in detail or contest the patent on the basis of new, independent reasoning or facts.

2. Legal status of intervener

In G 3/04 (OJ 2006, 118) the Enlarged Board held that the valid intervener acquired the status of an opponent, irrespective of whether the intervention occurred during the proceedings before the opposition division or at the appeal stage. In either case his rights and obligations were the same as those of other opponents.

2.1. In opposition proceedings

In G 3/04 the Enlarged Board considered that an intervener in proceedings before the opposition division had a right of appeal under Art. 107 EPC. For the appeal to be validly filed, he must pay the appeal fee under Art. 108, second sentence, EPC. Furthermore, the board held that an intervener in proceedings before the opposition division, where all the opponents have withdrawn their oppositions, can continue the proceedings alone and, if need be, file an appeal, since he has the same status as an opponent under Art. 99 EPC 1973.

In T 614/13 of 2 July 2015 the board had to rule on the admissibility of an intervener's appeal against the opposition division's decision to reject its opposition because it had not shown that it had intervened in the opposition proceedings in time. The board held that, even if it upheld the opposition division's decision, that would not mean the intervener had never been a party to the proceedings, but only that as from the date on which decision on appeal took effect it would no longer be entitled to take part in the (further) proceedings. Until that point in time its procedural status would be confined to obtaining clarification as to whether it was entitled to take part.

2.2. In appeal proceedings

In G 3/04 the Enlarged Board ruled that an intervener, if the appeal is filed by someone other than him, is a party as of right according to Art. 107, second sentence, EPC. If the intervention is filed during the appeal proceedings, the intervener, again because he can only acquire the status of an opponent, has the same rights and obligations – apart from the right to raise new grounds of opposition – as any opponent who has not filed an appeal. If in this case the sole, or each, appeal has been withdrawn, the appeal proceedings are terminated in respect of all the substantive issues, including the new grounds for opposition raised by the intervener, for all the parties (see also T 694/01, OJ 2003, 250).

In G 1/94 (see in this chapter III.P.1.4.2), the Enlarged Board also examined the question of whether an intervener during appeal proceedings could raise any of the grounds for opposition under Art. 100 EPC 1973 even if they had not yet been examined by the opposition division, and found in the affirmative. If a fresh ground for opposition was raised, the case should be remitted to the department of first instance unless the patent proprietor wished the board to rule on it there and then. In T 694/01 (OJ 2003, 250), it was made clear that where a board has decided to maintain a patent on the basis of a given set of claims and a description to be added to them, in subsequent appeal proceedings confined to the issue of the adaptation of the description the previous decision is *res judicata* and the intervener cannot therefore challenge this decision by introducing a new ground of opposition.

2.3. Intervener enters proceedings at stage they are at on the date of intervention

In T 392/97 the would-be interveners requested that the date for the appointed oral proceedings be postponed and submitted that they had not been duly summoned to the oral proceedings in accordance with R. 71(1), second sentence, EPC 1973 which